

FEDERAL MARITIME COMMISSION

IGOR OVCHINIKOV, IRINA
RZAEVA, AND DENIS NEKIPELOV
Complainants

KAIRAT NURGAZINOV
Claimant

v.

MICHAEL HITRINOV A/K/A
MICHAEL KHITRINOV, EMPIRE
UNITED LINES CO., INC., AND
CARCONT LTD.

Respondents

Consolidated Docket
Nos. 15-11 and 1953(I)

Served: May 1, 2017

BY THE COMMISSION: Michael A. KHOURI, *Acting Chairman*; Rebecca F. DYE, Mario CORDERO, William P. DOYLE, Daniel B. MAFFEI, *Commissioners*.

Order Granting Complainants' Motion for an Increase up to Eighteen Pages for Their Exceptions

This proceeding is before the Commission following the Administrative Law Judge's March 9, 2017 Initial Decision Granting Respondents' Motion for Judgment on the Pleadings. On April 10, 2017, the Commission granted in part Complainants' Second Motion for an Enlargement of Time to File Exceptions and for Other Relief, and extended the deadline for Complainants to

file exceptions to May 3, 2017. On April 25, 2017, Complainants timely filed a Motion for an Increase up to Eighteen Pages for Their Exceptions (Motion to Increase Page Limit) pursuant to Commission Rules 69, 71, and 227(e). 46 C.F.R. §§ 502.69; 502.71; 502.227(e); Motion to Increase Page Limit at 1-2. Respondent's filed a response on April 27, 2017.

Complainants contend that they need an additional 18 pages beyond the 50-page limit for exceptions to adequately respond to the numerous issues that the 73-page Initial Decision addresses and the vast amounts of documentary evidence. *Id.* Respondents oppose the motion in part, arguing that Complainants have failed to show good cause for the extension. Respondents, as a matter of courtesy, would agree to an additional five pages.

Rule 227(e) of the Commission's Rules of Practice and Procedure limits exceptions and replies to 50 pages, "unless the Commission allows the parties to exceed this limit for good cause shown." 46 C.F.R. § 502.227(e). "The exception to the page limit, requiring a showing of good cause, [is] intended to provide for those extraordinary cases in which a 50-page brief would be insufficient to address relevant issues." *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 28 S.R.R. 1128-29 (FMC 1999).

In their response, Respondents rely primarily on the decision in the *Rose* case, arguing that the Commission held in that case that a lengthy record and a long initial decision, are not, on their own, sufficient to establish good cause for enlargement of the 50-page limit. Respondents, however, omit a crucial part of the quoted passage, which states in full, "A lengthy record and a long initial decision are not, on their own, sufficient to show good cause *for a submission three times the size of the standard 50-page limit.*" 28 S.R.R. at 1129 (emphasis added). The complainant in that case was requesting a 100-page enlargement of the page limit, and the portions of the decision cited by Respondents describe the Commission's rationale for denying an enlargement of that magnitude. *See id.* In fact, the Commission granted the complainant in that case an additional 25 pages, finding that the "the size of the record justifie[d] an extension" of the page limit. *Id.* at 1129-30.

In the case at hand, the Commission finds that the size of the record and procedural complexity justify Complainants' request to file exceptions that are no longer than 68 pages. The Commission also finds that allowing Complainants to file an additional 18 pages in their exceptions will not delay the proceeding or prejudice any party in this matter. Respondents are free to request additional pages for their reply to exceptions if necessary.

THEREFORE, IT IS ORDERED, That Complainants' Motion for an Increase up to Eighteen Pages for Their Exceptions is granted.

IT IS ORDERED, That Complainants exceptions are limited to a total of 68 pages and are due by May 3, 2017.

By the Commission.

Rachel E. Dickon
Assistant Secretary